

प्रश्नों
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In the UK, Parliamentary sovereignty allows amendments without judicial interference, whereas in India, judicial review limits Parliament's authority under Article 368. Discuss whether India's constitutional framework strikes a balance between Parliamentary sovereignty and constitutional supremacy.

UK followed parliamentary sovereignty, whereas India tried to be a parliamentary sovereign along with constitutional supremacy.

Feature	UK India	India UK
Parliamentary sovereignty	Absolute	Limited by judicial review
Judicial review	No power	Power to review & invalidate unconstitutional law
Amendment	No restriction	Limited by Basic doctrine.

India's constitutional framework granted parliament's legislative powers subjecting it to judicial review under constitution.

- It ensure parliament is not absolute like UK, and judiciary cannot override the democratic will.

→ parliament can ammend constitution under Article 368. ^{It had} ~~has~~ ammended multiple times like.

1) Shankari prasad case 1951 - 1st Ammendment

2) 42nd Ammendments 1976 - which expanded it power.

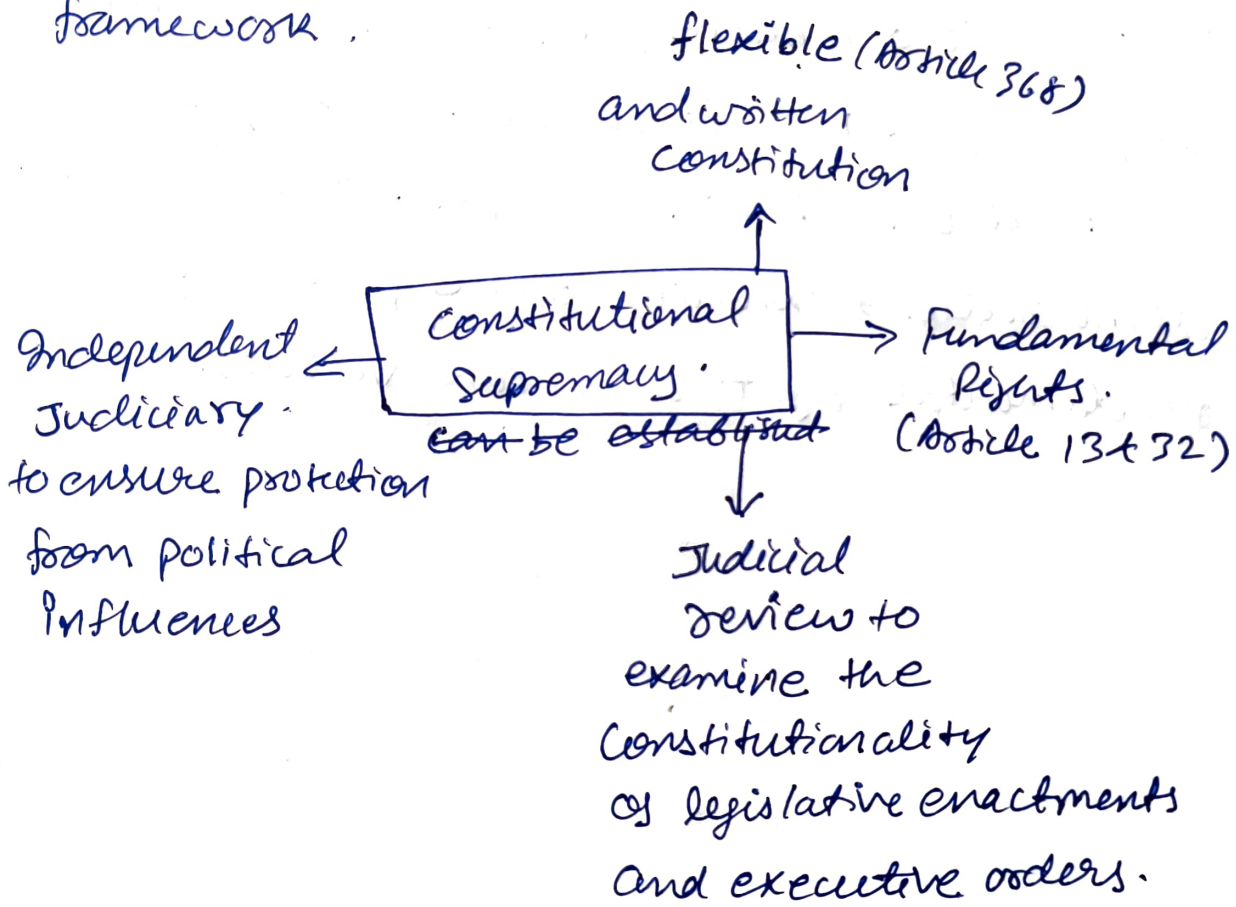
- It can also ammend Fundamental rights without affecting basic Structure.

Keshavananda Bharti case - Gave basic Structure doctrine. (1973).

- In india although parliament can ammend the constitution but the process varies based on how important the provision is.

* Constitutional supremacy :->

It is the highest law, and all institutions including Parliament, the executive and the judiciary must function within its framework.



Indian constitution framework had tried to balance both constitutional supremacy and parliamentary sovereignty as we have seen in inclusion of 42nd CAA 1976 and in Keshwananda Bharti case 1973, Minerva

Mill case 1980, Nationalisation case 1970
Where supreme court used its power of
Judicial review to examine the orders
passed earlier, and made reforms. It shows
India follow middle path where parliament
is powerful but it cannot destroy the
constitution's basic principle. This ensure
democratic flexibility while protecting
fundamental right and core values.